

FEDERAL MARITIME COMMISSION
Office of the Administrative Law Judges

CHAMELEON COMPANIES, LLC, *Claimant*

v.

TRANS-PACIFIC INTEGRATED LOGISTICS, INC., *Respondent*.

DOCKET NO. 2008(I)

Served: December 12, 2024

BEFORE: Theresa DIKE, *Small Claims Officer*.

ORDER DISMISSING COMPLAINT FOR FAILURE TO PROSECUTE

On April 29, 2024, the Secretary of the Federal Maritime Commission issued a Notice of Filing of Small Claims Complaint and Assignment, noting that Claimant Chameleon Companies, LLC (“Chameleon”) had commenced this proceeding against Respondent Trans-Pacific Integrated Logistics, Inc. (“Trans-Pacific”). The Secretary noted that the informal complaint was mailed to Trans-Pacific the same day and it was required to file a response to the complaint by May 24, 2024. Trans-Pacific has failed to respond to the Claim or otherwise participate in the proceeding despite multiple orders requiring it to file a response or risk subjection to a default judgment (June 12, 2024, notice by FedEx; and June 14, 2024, follow up by email; July 22, 2024, Order to Respond).

On July 22, 2024, the Chief Administrative Law Judge assigned this proceeding to the undersigned, who then issued the July 22, 2024, order to Transpacific. On October 7, 2024, the undersigned issued an Order to Show Cause and Request for Additional Information (“Order and Request”) to the parties, directing Respondent Trans-Pacific to show cause by October 21, 2024, why a default order should not be entered against it.

The Order and Request also directed Claimant Chameleon to submit by October 21, 2024, a brief explaining how its claim for reparations against Respondent Trans-Pacific for an alleged violation of 46 U.S.C. § 41102(c) satisfies the five elements specified at 46 C.F.R. § 545.4 for establishing entitlement to reparations. No brief or other response was received from Claimant; therefore, on October 29, 2024, an Order was issued, instructing Claimant to show cause by November 12, 2024, why its complaint should not be dismissed for failure to prosecute. Order to Show Cause to Claimant Chameleon Companies, LLC (“Show Cause Order”) at 2. The Show Cause Order further advised that “[f]ailure to respond to this order may result in the

dismissal of Chameleon's complaint against Trans-Pacific Integrated Logistics, Inc." Show Cause Order at 2. Claimant did not respond to the Show Cause Order.

A complainant's failure to prosecute is addressed by the Commission's Rules of Practice and Procedure. Rule 72(b) provides:

If the complainant fails to prosecute or to comply with these rules or an order in the proceeding, a respondent may move to dismiss the action or any claim against it, or the presiding officer, after notice to the parties, may dismiss the proceeding on its own motion. Unless the dismissal states otherwise, a dismissal under this subpart, except one for lack of jurisdiction or failure to join a party, operates as an adjudicator on the merits.

46 C.F.R. § 502.72(b). Although Rule 72, governing dismissal of Commission proceedings, is not applicable to Subpart S proceedings, the undersigned used the rule as a guide to determine the appropriate course of action in this situation.

Respondent has not filed a response or participated in this proceeding despite multiple orders and an Order to Show Cause advising that a default judgment could issue against it. However, Claimant's failure to follow through on its allegations against Respondent and to provide evidence substantiating its claim for reparation precludes the issuance of a default judgment against Respondent. Accordingly, Chameleon's Claim against Trans-Pacific is dismissed with prejudice.

THERESA DIKE

Digitally signed by THERESA
DIKE
Date: 2024.12.12 14:30:01 -05'00'

Theresa Dike
Small Claims Officer